



The Forty-Year Rule You Wrote

Teacher copy (everything in the student copy, plus answers and teaching notes)

The article, marked for rhetorical devices (one color throughout):

1 Chief Justice Roberts, forgive the liberty a private citizen takes in writing to you at all, weeks before an election, about a case you have already closed. On April 29 your Court decided *Louisiana v. Callais*, six votes to three, and Justice Alito wrote for a majority you joined. The map at issue had drawn a second majority-Black district. The Court called that an unconstitutional racial gerrymander.

2 I had meant, in writing to you, to do the decent thing and defer. A citizen who cannot read a docket the way you can is supposed to grant that the Justice has seen more, weighed more, sat longer with the record than any letter-writer ever could. [Concession] That is the posture this letter was going to keep. I find I cannot keep it, and the reason is your own hand.

3 In 2013, striking down the Voting Rights Act's coverage formula in *Shelby County v. Holder*, you wrote that an enforcement law must speak to current conditions, that Congress could not rest on facts forty years old having no logical relationship to the present day. [Allusion] You also wrote, in that same opinion, a sentence I have not forgotten. Voting discrimination still exists, you said; no one doubts that. [Tone] The argument was about evidence, about whether the record before Congress was current enough to carry the burden. You asked for present facts. It was a demanding standard, and you meant it to be.

4 So here is where the deference I owed you runs out. The standard that governed minority-vote cases for forty years came from *Thornburg v. Gingles*, decided in 1986. *Callais* narrows it, and now asks plaintiffs to prove a state drew its lines with intent, because of race, in the present day. You once told Congress its forty-year-old facts were too old to bind anyone; now you have unsettled a forty-year-old rule that protected voters, and asked the people it protected to carry a burden almost nobody can lift. [Antithesis] Justice Kagan, in dissent, dropped the word respectfully from her last line and wrote only that she dissents. Florida redrew its map within hours. Tennessee did it inside a week.

5 I am not asking you to apologize, and I would not presume to tell you the law. I am asking only that you hold the next voting case to the standard you set yourself: current conditions, present facts, the burden where you once placed it. [Parallelism] You wrote the rule about forty years. Apply it to your own.

Devices, and why they are here:

Concession (paragraph 2): "I had meant, in writing to you, to do the decent thing and defer. A citizen who cannot read a docket the way you can is supposed to grant that the Justice has seen more, weighed more, sat longer with the record than any letter-writer ever could."

The writer grants, in good faith, that a Justice has read the record more closely than any citizen could, lowering his own standing before the turn. Performing the deference the Open Letter runs on makes the later refusal land as principle rather than insolence.

Allusion (paragraph 3): “In 2013, striking down the Voting Rights Act's coverage formula in *Shelby County v. Holder*, you wrote that an enforcement law must speak to current conditions, that Congress could not rest on facts forty years old having no logical relationship to the present day.”

Quoting Roberts' own widely reported *Shelby County* language back to him borrows his authority as the engine of the letter; the reader judges him against words he is known to have written, so refusal would be public self-contradiction.

Tone (paragraph 3): “Voting discrimination still exists, you said; no one doubts that.”

The flat, almost respectful restatement of 'no one doubts that' keeps the deferential surface intact while quietly setting the trap, so the indictment reads as earnest memory rather than attack.

Antithesis (paragraph 4): “You once told Congress its forty-year-old facts were too old to bind anyone; now you have unsettled a forty-year-old rule that protected voters, and asked the people it protected to carry a burden almost nobody can lift.”

Setting the forty-year-old facts he once called too old against the forty-year-old rule he has now unsettled holds his two positions in balanced contradiction, making the inconsistency the argument itself.

Parallelism (paragraph 5): “I am asking only that you hold the next voting case to the standard you set yourself: current conditions, present facts, the burden where you once placed it.”

The matched series 'current conditions, present facts, the burden where you once placed it' gathers his own demanded standard into one request, framing the close as his own choice to honor rather than a demand from below.

AP-style multiple choice:

1. Which of the following best characterizes the writer's purpose in restating Roberts' *Shelby County* language in the third paragraph?
 - A) To praise Roberts for the rigor of the evidentiary standard he set in 2013
 - B) To summarize the legal reasoning of *Shelby County* so a general reader can follow the case
 - C) To prove that Roberts privately doubts that voting discrimination still exists today
 - D) To hold Roberts to a standard of evidence he himself once demanded, exposing a contradiction with his vote in *Callais*
2. In the fourth paragraph, the sentence beginning 'You once told Congress its forty-year-old facts were too old to bind anyone' relies primarily on which rhetorical strategy?
 - A) Antithesis, balancing his rejection of old facts against his unsettling of an old rule
 - B) A rhetorical question, posed to the addressee to prompt reflection rather than an answer
 - C) Hyperbole, exaggerating the consequences of the ruling beyond what the facts support
 - D) Allusion, invoking a historical figure the average reader would recognize

Multiple choice answer key:

1. **Answer D.** The keyed option captures the engine of the letter: the writer quotes Roberts' own words about current conditions and forty-year-old facts precisely to bind him to them. The option about private doubt inverts the relationship, since the writer treats Roberts' 'no one doubts that' as sincere, not as concealed doubt. The option about summarizing for a general reader is true at the surface but not the function asked, since the restatement serves an argument, not an explainer. The option about praising the standard's rigor reads the admiring tone too literally and misses that the rigor is being turned against him.

2. Answer A. The keyed option names the balanced contrast that structures the sentence: the forty-year-old facts he dismissed set against the forty-year-old rule he disturbed. The hyperbole option mistakes the writer's restraint for exaggeration, since the claim tracks the verified ruling rather than inflating it. The allusion option misapplies a real device on the list, since the sentence refers to Roberts' own prior act rather than a recognizable outside figure. The rhetorical-question option misreads the form, since the sentence is a declarative charge, not a question.

Discussion questions:

1. The letter never calls Roberts wrong and never demands an apology; it asks only that he apply his own standard. How does that restraint change the force of the argument compared with a direct accusation?
2. The writer concedes early that a citizen cannot read a docket the way a Justice can, then declines to defer anyway. Is that concession genuine, or is it a setup for the turn? Use specific lines to defend your reading.

Sample strong discussion responses:

1. The restraint is the source of the force. By refusing to call Roberts wrong, the writer denies him the easy defense of dismissing an attack, and instead traps him inside his own words from Shelby County. The argument becomes 'you said current conditions must govern, so govern by them,' which is harder to wave off than 'you are wrong' because the standard belongs to Roberts, not the writer. The deferential surface also keeps the public, the letter's real audience, on the writer's side: a Justice who ignores a polite citizen quoting his own opinion looks worse than one who brushes off an insult.
2. The concession is genuine in its terms and strategic in its placement, and both can be true at once. The writer really does grant that a Justice 'has seen more, weighed more, sat longer with the record,' and nothing later contradicts that admission. But he stages it precisely so the refusal that follows reads as forced by principle rather than chosen out of disrespect. The line 'I find I cannot keep it, and the reason is your own hand' shows the concession was sincere and the turn reluctant; the writer keeps the deference everywhere except on the one point where Roberts' own standard makes deference impossible.

Writing prompt (Homework or extended in-class, Q3 argument):

In this open letter, the writer argues that a judge who once demanded current evidence to justify a voting-rights law should be held to that same demand when he later narrows such protections. The piece rests on a broader principle: that people in power should be bound by the standards they have publicly set for others. Write an essay in which you defend, challenge, or qualify the claim that public figures should be held to the standards they themselves have articulated. Use appropriate evidence from your reading, observation, or experience to develop your position.

Common misconceptions to watch for:

- Students may read the deferential opening as weakness or genuine submission and miss that the deference is a deliberate rhetorical posture; the marked Concession in paragraph 2 lowers the writer's standing precisely so the later refusal carries moral weight rather than insolence.
- Students may treat the marked Allusion as merely informational background about Shelby County, when its real work is to borrow Roberts' own authority and make refusal a public self-contradiction; quoting the addressee's values back at him is the letter's engine, not a digression.

- Students may label the marked Antithesis in paragraph 4 a simple repetition because the phrase 'forty-year-old' recurs; the device is the balanced contrast between the old facts he rejected and the old rule he unsettled, not the repeated words themselves.
- Students may assume an open letter must be angry or accusatory and so misread the tone, when the piece runs on earnest, restrained address and never attacks Roberts directly, holding him instead to principles he has already professed.

AP exam alignment:

This opener teaches how a writer builds an argument from the addressee's own prior words, using concession and allusion to convert deference into leverage. It models the rhetorical situation of a letter with two audiences (the powerful addressee and the overhearing public) and shows antithesis and parallelism doing load-bearing argumentative work rather than serving as ornament, preparing students for both rhetorical analysis (Q2) and argument from a contestable principle (Q3).